

Stereo,HCJDA-38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

C.R. No.2489 of 2012

Khuda Bakhsh
v.
Province of Punjab and another

J U D G M E N T

Date of Hearing	17.12.2021
Petitioner by	Mr. Usman Karimuddin, Advocate.
Respondents by	Syed Shadaab Hussain Jafferi, Addl. Advocate General

Rasaal Hasan Syed, J. This civil revision arises from judgments and decree dated 03.3.2011 and 22.5.2012 of the courts below whereby suit for declaration instituted by the petitioner was dismissed and the appeal thereagainst was also declined.

2. Facts material to decision of this petition are that allotment of land was made in favour of Chotu son of Rattu vide RL-II of 383 against claim No. 2580. Later the allotment was cancelled being based on bogus claim and land was resumed in the name of the provincial government. Petitioner claims to have purchased land measuring 120 kanals from Chotu which was reflected in the revenue record vide mutation No. 1944 dated 25.11.1961; certain other persons had also purchased land from the said Chotu. It was asserted that Constitutional petition bearing W.P.

No. 1338-R of 1977 was filed by the vendees against the order of resumption of land which was decided by a learned Single Judge of this Court, as he then was, vide Order dated 13.7.1991 in terms whereof the writ petitioners, the vendees from Chotu, were allowed a right to purchase the land. The grievance voiced in the suit was that the order in the Constitutional petition was not implemented by the concerned functionaries, in result, some of the purchasers instituted civil suits which were allowed and they were granted relief while the petitioner was not accorded the same relief. In this backdrop the petitioner claimed a declaration to the effect that he was owner in possession of the land as purchaser vide mutation No. 1944 dated 25.11.1961 and that he shall be allowed to purchase the land @Rs. 100/- per unit regarding average price of the year 1962. Suit was contested by the Province of the Punjab, issues were framed and evidence recorded, whereafter the learned Civil Judge, Bakkar, dismissed the suit vide judgment dated 03.3.2011. Appeal filed by the petitioner thereagainst also ended in dismissal vide judgment dated 22.5.2012. The petitioner now seeks annulment of the judgments of the courts below.

3. Learned counsel for the petitioner contended that the judgments of the courts below were based on misreading and non-reading of the record; that the courts below committed material irregularities and illegalities in dismissing the suit as also the appeal; that the ratio of the

judgment in W.P. No. 1338-R of 1977 dated 13.7.1991 was mis-interpreted and misapplied; that the petitioner was extended discriminatory treatment and that in view of the oral and documentary evidence on record the petitioner was entitled to a decree in the suit. Learned counsel for the respondents, to the contrary, argued that the petitioner was rightly non-suited; that the judgment of this Court was correctly applied and that one of the judgments relied upon by the petitioner was set aside in appeal; that the petitioner did not apply for the purchase of the land but despite this he was offered to purchase which offer he did not avail nor deposited a single penny towards the purchase price; and that the petitioner missed the bus as he did not deposit the purchase price as assessed by the authorities and remained silent till the filing of the suit which was hopelessly barred by time having not being filed within six years in terms of Article 120 of the Limitation Act, 1908 and that no mis-reading and non-reading of any evidence existed.

4. From the documents available with this petition it may be seen that Chotu son of Rattu was a temporary allottee against claim No. 2580 vide RL-II of 383 which was later cancelled as it was found that the claim was bogus. In result the allotment of Chotu and also the persons claiming through him was cancelled by the Assistant Commission in exercise of powers under sections 10 and 11 of the Displaced Persons (Land Settlement) Act, 1958 and land was restored in favour of the provincial government. Appeal

filed thereagainst was also declined by the Addl. Settlement Commission (Land) Mianwali vide order dated 02.7.1970. The order was challenged in a Constitutional petition wherein the matter was remanded to the Addl. Settlement Commissioner (Land) Mianwali for decision afresh on merits. In the post-remand proceedings, the Addl. Settlement Commissioner (Land) set aside the allotment in favour of Chotu and directed the Assistant Commissioner/Tehsildar to take necessary action in the context illegal benefit which was ordered to be recovered from occupants. The Addl. Settlement Commissioner (Land), however, permitted the subsequent vendees to purchase the land so resumed. This order was challenged in Constitutional petition bearing W.P. No. 1338-R of 1977 which was decided on 13.7.1991 Exh.P-3. It is evident from perusal of this Order that the learned Single Judge as he then was, only considered the question pertaining to the recovery of penalty, in addition to the cancellation of allotment from the occupants and observed that the order of Addl. Settlement Commissioner (Land) to the extent of recovery of penalty from the occupants, was without lawful authority. However, the order to the extent of cancellation of allotment and an option to the vendees to purchase the land, was maintained. The operative part of the Order is as follows:

“8. In the light of foregoing analysis, these petitions, are partly accepted and the impugned order to the extent of levying/recovering of penalty from the vendees is set aside. The petitioners-vendees shall be entitled to purchase the land in their in accordance with law. This

order shall not preclude the competent authorities from imposing/recovering penalty from the original allottee-Chutto.”

5. The claim of the petitioner in the suit was that he was entitled to purchase the land @Rs. 100/- per unit in terms of the Order of this Court and that the demand for the payment of Rs. 1,064/- per kanal was untenable which he was not bound to pay. In his statement as PW1 the petitioner reiterated that he was entitled to the restoration of land @Rs.100/- per unit and that he moved application to the Assistant Commissioner; which request was not acceded to and instead the Assistant Commissioner directed payment @Rs. 1,064/- per unit which the petitioner did not deposit as his demand was for being charged the price @Rs.100/- per unit. Petitioner did not place on record any documentary evidence of having moved the application for the purchase of land nor did he give any date on which such application was moved. Nevertheless, from the documentary evidence produced by the petitioner, copy of the judgment dated 28.6.2006 Exh.P-8 available at page 70 of the instant petition, it appears that the order for the payment of price @Rs.1,064/- was issued by the Assistant Commissioner on 02.8.1994. In his statement as PW1 the petitioner admitted that he did not comply with the order of payment of price @Rs.1,064/- nor did he file any appeal thereagainst and did not challenge it in the hierarchy of jurisdiction and simply filed the present suit on 03.4.2008 i.e., approximately after a period of 17 years from the date of the order of this Court and after 14 years from the date of order of Assistant

Commissioner. The stance of petitioner was that in the Order of this Court he was allowed to purchase the land @Rs. 100/- per unit which stance was factually incorrect as there was no such directive. As a matter of fact, after the allotment of Chotu was cancelled having been obtained by fraud, the subsequent allotment by the vendees was also cancelled and, in law, they had no right to claim to be bona fide purchasers in view of the settled law. Reference can be made to “Talib Hussain and others v. Member, Board of Revenue and others” (2003 SCMR 549).

6. Be that as it may, in the instant case the Addl. Settlement Commissioner (Land) permitted the subsequent vendees to purchase the land and as per the Order in the Constitutional petition referred supra the subsequent vendees were held to be entitled to purchase of the land in accordance with law. There is no determination of price in the Order of this Court as claimed by the petitioner. Instead, the petitioner was only given a chance to purchase the property if so intended and in doing so, he could not dictate the Settlement Department to charge the price that he would prefer to pay. Obviously being a vendor, the Department had to secure public interest and to ensure that the sale of property did not take place at a throwaway price and was under an obligation to recover the value that was fair and reasonable. The Addl. Settlement Commissioner (Land) in the instant case complied with the Order of this Court by calling upon the subsequent vendees from Chotu including

the petitioner to purchase the land by depositing price @Rs. 1,064/- which the petitioner admittedly did not deposit. Strangely enough neither the petitioner made deposit of price nor challenged the order in the hierarchy of jurisdiction and remained silent and inactive for a period of 14 years from the order passed by the concerned authorities whereafter the suit was filed. By his own inaction and non-deposit of price, the petitioner could not grouse for the cause for which he was himself responsible. In this backdrop when the courts below examined the evidence of the petitioner it was concluded that the suit was barred by time having been filed after more than six years as per Article 120 of the Limitation Act, 1908 and, in any case, the petitioner had failed to show any right to dictate the provincial government to sell @ Rs. 100/- per unit and that his stance as to the determination of price in the Order of this Court was factually untrue. Order being only to the extent that the subsequent vendees were entitled to purchase the land in accordance with law, which order stood complied with when the respondents offered the petitioner to purchase land by depositing the price determined and if the petitioner himself opted not to pay, it is he alone who was to blame. He could not after 14 years be heard to claim that the Order of this Court was not complied with. This aspect of the matter was also examined in one of the judgments in an appeal emanating from the judgment of civil suit raising similar question which documents the

petitioner himself opted to produce as Exh.P-8 and Exh.P-9. The judgment in the suit titled “Province of Punjab, etc. v. Muhammad Gulzar, etc.” Exh.P-8 available at page 70 of this petition shows that the learned Civil Judge after considering the evidence and also the judgment of this Court in earlier Constitutional petition, observed that the vendees’ possession was protected and that they were held entitled to purchase the land in their possession in accordance with law and that it was not their sweet will to dictate the seller, who in the present case was only bound to sell the land to the vendees in accordance with law and that the vendees could not produce any official instructions from the concerned authorities to support the plea that they were entitled to land owned by the state @Rs.100 per index unit. Same is the position in the present case. Petitioner relied upon the Order in W.P. No. 1338-R of 1977 which does not declare the entitlement of the petitioner to purchase the land @Rs. 100/- per index unit. Rather the observation was that the vendees were entitled to purchase in accordance with law. The basis on which the petitioner filed the suit was, as such, obviously non-existent.

7. In the instant case the petitioner was offered to purchase the land in compliance with Order dated 13.7.1991 in W.P. No. 1338-R of 1977; but the petitioner admits to have not paid or deposited the amount nor challenged the price assessed in appeal for anywhere in the hierarchy of jurisdiction. Instead the suit was filed after 14 years which

obviously was barred by time. Be that as it may, the petitioner did not make necessary compliance to the Order of this Court for the purchase of land and it was the petitioner who was himself to blame for not availing the option and, therefore, the grievance voiced by the petitioner as to the non-implementation of the Order was ill-founded. If the offer could not materialize the petitioner shall fault himself for the consequential results of not accepting the offer or depositing the requisite amount. The courts below after analyzing the evidence rightly concluded that the suit of the petitioner was barred by time and also that the petitioner had failed to avail the offer and, therefore, could not be heard at this belated stage.

8. Another legal objection as to the maintainability of the suit was that the petitioner was claiming declaration of ownership qua the land in dispute on the basis of mutation No. 1944 dated 25.11.1961 in terms of which he had allegedly purchased land measuring 120 kanals from Chotu. This demand of the petitioner on the face of it was untenable for the reason that the allotment of Chotu and also the persons claiming through him, including the petitioner, got cancelled as the same was based on bogus claim and the ultimate result of litigation was that the orders for cancellation of mutations were sustained while the subsequent vendees were given an option to purchase the land in accordance with law; which offer the petitioner did not avail. Being so, no declaration of ownership could be

claimed on the basis of the mutation No. 1944 which had already been cancelled and the order of cancellation was affirmed up till this Court in W.P. No. 1338-R of 1977 in which the petitioner was a party. The claim of the petitioner for declaration of ownership was, therefore, unsustainable. The suit of the petitioner was liable to be dismissed on this count.

9. The plea of discrimination was also misconceived and untenable. If in other cases with different facts some indulgence was sought from the court and relief was granted for the implementation of the earlier order, that will not extend any help to the petitioner who had to make out his own case on the strength of the material or evidence produced in his own suit. The other judgments being judgments in personam could not have any universal application unlike judgments in rem, therefore, the petitioner was rightly non-suited by the courts below by properly analyzing his conduct from the evidence on record. The findings recorded by the courts below could not pointed out to be based on any misreading or non-reading of evidence or to be suffering from any error of law as to warrant interference. Needless to observe that the petitioner moved C.M. No 01/C of 2018 under Order XLI, Rule 27, C.P.C. for producing certain decisions in civil suits between the other parties which obviously would not serve any purpose as the same were decided on their own facts and could not be applied to the case of the petitioner who failed

to prove his own suit by any cogent or admissible evidence nor could cross the hurdle of limitation. The application for additional evidence is, therefore, declined.

10. The revision petition being devoid of any substance is **dismissed**.

(Rasaal Hasan Syed)
Judge

Announced in open Court on 21.12.2021.

Judge

Approved for reporting.

Judge

Imran*